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North Carolina Expunction Agent Training Reference

A complete operational knowledge base for clearing criminal records in North Carolina: the Second Chance Act conviction expunctions (G.S. 15A-145.5), dismissal and not-guilty expunctions (15A-146, including automatic relief), youthful expunctions, the “nonviolent” definition, the AOC-CR forms, procedure, fees, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of North Carolina (Superior Court of the county; SBI / AOC record checks)
Primary statutes	G.S. Ch. 15A: § 15A-145.5 (nonviolent convictions); § 15A-146 (dismissals/not guilty); § 15A-145.8A (youthful)
Controlling changes	Second Chance Act (S.L. 2020-35, eff. 12/1/2020); 2025 change (S.L. 2025-71) cut one-misdemeanor wait to 3
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects Ch. 15A as amended through the 2025 session

VERIFY BEFORE RELYING

North Carolina calls expungement “expunction” and runs it through many separate statutes in Chapter 15A, each with its own AOC-CR form, waiting period, and rules — so the agent must pick the exact statute. The Second Chance Act (eff. 12/1/2020) expanded conviction expunctions and made many DISMISSALS automatic. The 2025 legislation (S.L. 2025-71) cut the wait for one nonviolent misdemeanor from five years to THREE for petitions filed on/after July 9, 2025; the AOC form (AOC-CR-298, July 2025) reflects this. “Nonviolent” is a defined term that EXCLUDES Class A–G felonies, Class A1 misdemeanors, impaired driving (DWI), and sex offenses. The agent must map each offense to its class and confirm the current statute, form, and waiting period before relying on any rule.

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How the agent should use this document

North Carolina routes by disposition and offense class. (1) **Dismissals and not-guilty findings (15A-146)** are the easiest: no waiting period, no prior-conviction or prior-expunction bar, and for dispositions on/after December 1, 2021, many are expunged AUTOMATICALLY by operation of law 180–210 days after final disposition. (2) **Nonviolent conviction expunctions (15A-145.5)** clear nonviolent misdemeanors (one after 3 years; more than one after 7 years) and nonviolent felonies (one after 10 years; two or three after 20 years), with a clean record and good-character showing. (3) **Youthful / pre-Raise-the-Age expunctions (15A-145.8A)** let people clear Class H/I felonies and misdemeanors committed at 16–17 before Dec 1, 2019. The agent should (1) determine conviction vs. dismissal/acquittal; (2) for convictions, classify the offense as nonviolent and apply the waiting tier; (3) check the no-other-conviction and no-prior-expunction rules; and (4) pick the matching AOC-CR form.

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Statutory shorthand used throughout

G.S. 15A-145.5	Expunction of NONVIOLENT misdemeanor and felony CONVICTIONS (Second Chance Act)
G.S. 15A-146	Expunction of DISMISSALS and NOT-GUILTY findings (incl. automatic relief)
G.S. 15A-145.8A	YOUTHFUL convictions — offenses at 16–17 before 12/1/2019 (pre-Raise-the-Age)
“nonviolent”	Defined term: NOT a Class A–G felony, Class A1 misdemeanor, DWI, or sex offense
G.S. 15A-153	The EFFECT of an expunction — person may deny the arrest/charge/conviction
AOC-CR-287 / 288	Forms: petition to expunge a DISMISSAL / an ACQUITTAL
AOC-CR-297 / 298	Forms: expunge nonviolent FELONY / nonviolent MISDEMEANOR conviction(s)
SBI / AOC checks	DPS State Bureau of Investigation (priors) + AOC (prior expunctions) record checks

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1. Eligibility rules

Three main families, considered by disposition.

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Family 1 — Dismissals and not-guilty findings (G.S. 15A-146)

The broadest and easiest relief:

- **Dismissed charges** (by the State or the court) — a single dismissal or multiple dismissals may be expunged; the court shall order expunction on finding the charge(s) were dismissed.
- **Not-guilty / not-responsible findings** — expungeable once all related charges reach final disposition.
- **No bars:** 15A-146 has NO prior-conviction bar and NO prior-expunction bar — a person may use it even with other convictions or earlier expunctions.
- **Automatic expunction (on/after Dec 1, 2021):** if ALL charges in a case are dismissed or result in not-guilty on/after 12/1/2021, the case is expunged BY OPERATION OF LAW 180–210 days after final disposition — no petition (with limited exceptions, e.g., certain dismissals via deferred prosecution/conditional discharge).

Family 2 — Nonviolent conviction expunctions (G.S. 15A-145.5)

The Second Chance Act conviction relief, limited to “nonviolent” offenses:

- **One nonviolent misdemeanor** — after 3 years (reduced from 5 by the 2025 law, for petitions filed on/after 7/9/2025).
- **More than one nonviolent misdemeanor** — after 7 years from the last conviction / completion of sentence.
- **One nonviolent felony** — after 10 years from completion of the sentence.
- **Two or three nonviolent felonies** — after 20 years; all nonviolent felonies disposed in the same session of court count as one.
- Requires no disqualifying convictions, a good-character showing, no outstanding restitution, and (for most) no prior 15A-145.5 expunction.

Family 3 — Youthful / pre-Raise-the-Age expunctions (G.S. 15A-145.8A) and others

- **15A-145.8A:** convictions for Class H/I felonies and misdemeanors committed at age 16 or 17 BEFORE December 1, 2019 may be expunged by petition (or by the district attorney) after the sentence is completed, with no outstanding restitution; a judge must grant an eligible petition.
- **Other targeted statutes:** under-18 / under-21 offenses (15A-145), gang offenses before 18 (15A-145.1), certain drug conditional discharges (15A-145.2 / 145.3), and a nonviolent felony before 18 (15A-145.4) — each with its own form and rules.

AGENT GUIDANCE

Route by disposition first. Dismissal or not-guilty → 15A-146 (no wait, no priors bar; often automatic).

Conviction → classify as nonviolent and use 15A-145.5 with the waiting tier. Old teen conviction → check 15A-145.8A.

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For any case dismissed/acquitted on or after 12/1/2021, check whether AUTOMATIC expunction already applies before preparing a petition — the person may not need to file.

2. Waiting periods

Conviction waits run from the date of conviction or the completion of any active sentence, probation, and post-release supervision, whichever is later. Dismissals have no wait.

Disposition / offense	Statute	Waiting period	Note
Dismissal / not guilty	15A-146	None	Often automatic (post-12/1/2021)
One nonviolent misdemeanor	15A-145.5	3 years	Reduced from 5 (2025)
More than one nonviolent misdemeanor	15A-145.5	7 years	From last conviction/completion
One nonviolent felony	15A-145.5	10 years	From completion of sentence
Two or three nonviolent felonies	15A-145.5	20 years	Same-session felonies count as one
Youthful (16–17 pre-12/1/2019)	15A-145.8A	On completion	No outstanding restitution
Under-18 misdemeanor	15A-145	2 years	Targeted statute
Larceny (anyone)	15A-145	15 years	Targeted statute

Two rules shape the count for conviction expunctions. First, the person must have **no conviction** for any felony or misdemeanor (other than a traffic offense) during the waiting period, AND — for the misdemeanor track — no conviction at any time for any offense other than the one(s) being expunged (beyond traffic). Second, the **same-session rule**: all nonviolent felonies disposed in a single session of court are treated as one nonviolent felony conviction for counting and waiting-period purposes. The 2025 reduction of the one-misdemeanor wait to three years applies to petitions filed on or after July 9, 2025; the AOC form's findings-of-fact language reflects this.

AGENT GUIDANCE

Compute from completion of the FULL sentence (active time + probation + post-release), not just the conviction date. One nonviolent misdemeanor = 3 yrs; more than one = 7; one nonviolent felony = 10; two–three = 20.

Use the same-session rule to a petitioner's advantage — multiple nonviolent felonies from one court session count as a single felony, which can change the tier and eligibility.

3. Disqualifying offenses (the “nonviolent” definition)

For conviction expunctions, eligibility turns on whether the offense is “nonviolent” as defined in G.S. 15A-145.5(a). It is defined by exclusion.

NOT “nonviolent” (categorically ineligible for 15A-145.5)

- **Any Class A through G felony** (only Class H and I felonies can qualify as nonviolent).
- **Any Class A1 misdemeanor** (the most serious misdemeanor class).
- **Impaired driving (DWI)** and related offenses under G.S. 20-138.1 et seq.
- **Sex offenses** and any offense requiring sex-offender registration.
- Offenses involving **assault as an essential element**, certain offenses against minors, stalking, and other enumerated crimes.
- Offenses involving **methamphetamine**, certain controlled-substance trafficking, and hate crimes, as enumerated.

Record-based disqualifiers (conviction expunctions)

- **Any disqualifying conviction** elsewhere on the record — for the misdemeanor track, any non-traffic conviction at any time (other than the offense being expunged) bars relief; for both tracks, no new conviction during the waiting period.
- **Prior expunction.** Generally only one 15A-145.5 expunction in a lifetime (the statute limits repeat use).
- **Outstanding restitution** on the conviction to be expunged bars relief until satisfied.
- **Pending charges** at the time of the petition.

Note on dismissals (15A-146)

- Dismissals and not-guilty findings under 15A-146 have NO nonviolent limitation, NO prior-conviction bar, and NO prior-expunction bar — any dismissed charge (with narrow exceptions) is expungeable.
- **Out-of-state and federal convictions** are not expungeable under North Carolina law, but they count when assessing eligibility for conviction expunctions.

VERIFY BEFORE RELYING

The “nonviolent” definition is set by offense class and an enumerated exclusion list in G.S. 15A-145.5(a), and the surrounding rules (no-other-conviction, prior-expunction limits, the same-session rule) are intricate; the 2025 changes also affected the one-misdemeanor wait and form. The agent must map each offense to its NC offense class, screen against the nonviolent exclusions, and verify the current statute and AOC form before declaring eligibility.

AGENT GUIDANCE

First screen: is the conviction a Class A–G felony, a Class A1 misdemeanor, a DWI, or a sex offense? If yes, it's not “nonviolent” and 15A-145.5 can't reach it.

DWI is the classic trap — impaired-driving convictions are excluded from the nonviolent definition and cannot be expunged as convictions.

4. Case outcome rules

Disposition and class drive the statute, the wait, and whether a filing is needed. This table is the agent's primary routing logic for North Carolina.

Case outcome	Statute	Route	Wait / note
Dismissed (state or court)	15A-146	Petition; often automatic	None
Not guilty / not responsible	15A-146	Petition; often automatic	None
All charges dismissed/NG (on/after 12/1/2021)	15A-146	Automatic, 180–210 days	No filing
One nonviolent misdemeanor	15A-145.5	Petition (AOC-CR-298)	3 yrs
Multiple nonviolent misd.	15A-145.5	Petition (AOC-CR-298)	7 yrs
One nonviolent felony	15A-145.5	Petition (AOC-CR-297)	10 yrs
Two–three nonviolent felonies	15A-145.5	Petition (AOC-CR-297)	20 yrs
Conviction at 16–17 pre-12/2019	15A-145.8A	Petition (AOC-CR-296)	On completion
Class A–G felony / A1 misd. / DWI / sex offense	—	Not eligible (convictions)	Categorical

Effect of relief (G.S. 15A-153): once expunged, the person is restored to the status occupied before the arrest, charge, or conviction — and may lawfully deny that it occurred, including on most employment and licensing applications. After an expunction, the clerk of superior court has NO record of the case and cannot provide documentation (even the expunction order is destroyed with the file), so the petitioner should keep their certified copy. The relief reaches North Carolina records only.

AGENT GUIDANCE

Tell users the expunction is strong — they can deny the matter — but warn that the court destroys the file, including the order, so they must keep the certified copy they receive.

For dismissals/acquittals on/after 12/1/2021, confirm whether automatic expunction already applied (180–210 days out) before filing anything.

5. Required forms (AOC-CR)

North Carolina uses statute-specific Administrative Office of the Courts forms (the AOC-CR series), filed in the Superior Court of the county where the charge was brought.

Form	Use
AOC-CR-287	Petition & order to expunge a DISMISSAL (G.S. 15A-146(a)/(a1))
AOC-CR-288	Petition & order to expunge an ACQUITTAL / not-guilty (15A-146(a2))
AOC-CR-298	Expunge ONE or MORE nonviolent MISDEMEANOR convictions (15A-145.5)
AOC-CR-297	Expunge nonviolent FELONY conviction(s) (15A-145.5)
AOC-CR-296	Youthful convictions at 16–17 before 12/1/2019 (15A-145.8A)
AOC-CR-264 etc.	Other targeted statutes (under-18/21, drug conditional discharge, etc.)

Each petition form contains the petition, the affidavit/consent to record checks, and the order for the judge. For conviction expunctions, the petitioner consents to two record checks — the AOC checks for prior expunctions and the DPS State Bureau of Investigation (SBI) checks for prior convictions — and the form includes affidavits of good character. For 15A-146 dismissals, neither a prior expunction nor a prior record check is a bar, and the AOC forms do not require service on the prosecutor.

AGENT GUIDANCE

Pick the form by statute: CR-287 (dismissal), CR-288 (acquittal), CR-298 (nonviolent misdemeanor), CR-297 (nonviolent felony), CR-296 (youthful). Using the wrong form is a common rejection reason. For conviction petitions, build in the AOC + SBI record-check consents and the good-character affidavits; for dismissals, those checks aren't required.

6. Filing instructions

- 1 **Get the record.** Obtain the petitioner's North Carolina criminal record (the SBI / DPS criminal history) and the court file to confirm each charge, disposition, offense class, and sentence-completion dates.
- 2 **Confirm the statute and eligibility.** Dismissal/acquittal (15A-146) vs. nonviolent conviction (15A-145.5) vs. youthful (15A-145.8A); the nonviolent classification; the waiting period; the no-other-conviction and prior-expunction rules; and any outstanding restitution.
- 3 **Complete the matching AOC-CR form** (CR-287/288/297/298/296), including the record-check consents and good-character affidavits for conviction petitions.
- 4 **File in the Superior Court** of the county where the charge was brought, and pay the \$175 filing fee (waived for true dismissals/acquittals; charged where a charge was dismissed via deferred prosecution / conditional discharge, and for conviction petitions). A fee waiver may apply for indigent petitioners (e.g., SNAP/TANF/SSI or legal-services representation).
- 5 **Record checks / DA review.** For conviction petitions, the AOC and SBI complete their checks and the district attorney is given notice and may be heard; the AOC forms for dismissals do not require service on the prosecutor.
- 6 **Hearing or no-hearing order.** A judge may grant a 15A-146 dismissal expunction without a hearing; conviction petitions are decided after the record checks and any DA input.
- 7 **Order and destruction.** If granted, the order directs the SBI, DPS, DMV, AOC, the clerk, and the arresting agency to expunge the records. The clerk then has no record of the case — keep the certified copy of the order.

AGENT GUIDANCE

Venue is the Superior Court of the county where the charge was brought. The \$175 fee applies to conviction petitions and to deferred/conditional dismissals, but true dismissals and acquittals are free — and indigent petitioners may qualify for a waiver.

Warn the petitioner up front that after expunction the court keeps NO copy — they must safeguard the certified order they receive.

7. Court-specific quirks

- **Statute-specific forms.** NC has a separate AOC-CR form for nearly every expunction pathway; the right statute drives the right form.
- **Automatic dismissal expunction.** Cases fully dismissed or resulting in not-guilty on/after 12/1/2021 are expunged by operation of law 180–210 days after final disposition — no petition.
- **2025 misdemeanor change.** One nonviolent misdemeanor now waits 3 years (down from 5) for petitions filed on/after 7/9/2025; AOC-CR-298 (July 2025) reflects it.
- **“Nonviolent” is defined by exclusion.** Class A–G felonies, Class A1 misdemeanors, DWI, and sex offenses are out; only Class H/I felonies and lower misdemeanors can qualify.
- **Same-session rule.** Nonviolent felonies disposed in one session of court count as a single felony for the count and the waiting tier.
- **Two record checks.** Conviction petitions require AOC (prior expunctions) and SBI (prior convictions) checks; 15A-146 dismissals do not.
- **Court keeps no copy.** After expunction the clerk destroys the file, including the order — the petitioner's certified copy is the only proof.
- **\$175 fee, with carve-outs.** Conviction petitions and deferred/conditional dismissals cost \$175; true dismissals and acquittals are free; indigent waivers exist.

AGENT GUIDANCE

Always confirm the offense class and the matching AOC-CR form before drafting — NC's per-statute form system is unforgiving of the wrong form.

Check automatic-expunction timing for recent dismissals, and the 2025 three-year misdemeanor wait, before telling a user they must wait or file.

8. Fee information

Item	Amount	Note
Conviction expunction (15A-145.5)	\$175	Per petition
Youthful expunction (15A-145.8A)	\$175	Per petition (DA-filed may differ)
Dismissal via deferred prosecution / conditional discharge	\$175	Fee applies
True dismissal / not guilty (15A-146)	\$0	No fee; often automatic
Indigent fee waiver	\$0	SNAP/TANF/SSI or legal-services representation
SBI / AOC record checks	Included	Part of the conviction-petition process
Attorney fees (if represented)	Varies	Not required; Second Chance Alliance & clinics assist

Most expunction petitions carry a \$175 filing fee, but the picture is friendlier than it looks. A charge that was simply dismissed or resulted in a not-guilty finding is FREE to expunge (and is often expunged automatically), with the \$175 fee reserved for dismissals that came through a deferred-prosecution or conditional-discharge agreement and for conviction petitions. Indigent petitioners — including those receiving SNAP, TANF, or SSI, or represented by a legal-services organization — may qualify for a fee waiver. The NC Second Chance Alliance and court self-help resources assist for free.

AGENT GUIDANCE

Lead with the free routes: true dismissals and acquittals cost nothing and are often automatic. The \$175 fee is for conviction petitions and deferred/conditional dismissals.

Screen for a fee waiver — SNAP/TANF/SSI or legal-services representation can zero out the \$175.

9. Criminal history (SBI / AOC) request process

Confirming the record first establishes the offense class (which decides the nonviolent classification and tier), the dispositions, and the sentence-completion dates.

A. Statewide history — SBI / Department of Public Safety

- The North Carolina State Bureau of Investigation (within the Department of Public Safety) maintains the state criminal history; for conviction petitions the SBI also performs the statutory record check on prior convictions.
- A person may obtain their own criminal record check to confirm charges, classes, and dispositions before filing.

B. AOC and court records — clerk of superior court

- The Administrative Office of the Courts performs the record check for prior expunctions; the clerk of superior court in the county where the charge was brought holds the case file and is where the petition is filed.
- Remember that after a granted expunction the clerk retains no record of that case.

C. Federal — FBI Identity History Summary

- For records that may extend beyond North Carolina, the FBI fingerprint-based Identity History Summary is the federal equivalent; NC expunction reaches NC records only.

VERIFY BEFORE RELYING

SBI / DPS and AOC request methods and fees, and the rollout of automatic dismissal expunctions, can change. The agent should verify the current SBI/AOC request processes and any fees, and whether automatic expunction has reached the user's dismissed case, at the time of advising.

AGENT GUIDANCE

Frame the SBI / DPS criminal record check as step one — it fixes the offense class and dispositions that drive the nonviolent analysis. Direct users to the clerk of superior court of the county for the case file and filing, and remind them the file is destroyed after expunction.

10. Sample petitions and completed examples

North Carolina expunctions are filed on the matching AOC-CR form in Superior Court. The examples below show structure and key recitals. Names, dates, and identifiers are fictional and illustrative.

Example A — Expunge One Nonviolent Misdemeanor (AOC-CR-298, G.S. 15A-145.5)

STATE OF NORTH CAROLINA, COUNTY OF WAKE

In the General Court of Justice, Superior Court Division

STATE v. ANDRE L. CARTER File No. 19CR012345

PETITION AND ORDER OF EXPUNCTION (G.S. 15A-145.5)

1. Petitioner was convicted of the nonviolent misdemeanor listed on Side One (Larceny, Class 1 misdemeanor, G.S. 14-72).
2. The offense is 'nonviolent' under 15A-145.5 (not a Class A-G felony, Class A1 misdemeanor, DWI, or sex offense).
3. Petitioner was convicted of, and completed any active, probationary, or post-release sentence for, the offense at least THREE years before filing (2025 one-misdemeanor wait).
4. Petitioner has no other conviction (other than a traffic offense) at any time, and none during the waiting period.
5. Petitioner has not previously received a 15A-145.5 expunction, has no outstanding restitution, and is of good character.
6. Petitioner consents to the AOC (prior-expunction) and SBI (prior-conviction) record checks.

ORDER: the SBI, DPS, DMV, AOC, the clerk, and the arresting agency shall expunge all records of this conviction. Fee: \$175. (After expunction the clerk retains no record; keep the certified copy.)

Examples B, C & D — Other pathways

B. DISMISSAL / NOT GUILTY (15A-146, AOC-CR-287/288):

A dismissed charge or a not-guilty finding is expunged with NO waiting period and NO prior-conviction or prior-expunction bar. If ALL charges were dismissed / not-guilty on or after 12/1/2021, the case is expunged AUTOMATICALLY by operation of law 180-210 days after final disposition -- no petition, no fee.

C. NONVIOLENT FELONY (15A-145.5, AOC-CR-297):

One nonviolent (Class H/I) felony after 10 years; two or three after 20 years. Felonies disposed in the SAME session of court count as one. No disqualifying convictions; good character.

D. YOUTHFUL (15A-145.8A, AOC-CR-296):

Class H/I felonies and misdemeanors committed at 16-17 before 12/1/2019 (pre-Raise-the-Age) may be expunged after the sentence is completed with no outstanding restitution; a judge must grant an eligible petition. The DA may also file.

Petition and Order

Each AOC-CR form combines the petition, the petitioner's affidavits and consents, and the order for the judge. On a granted order, the named agencies (SBI, DPS, DMV, AOC, the clerk of superior court, and any arresting agency) expunge the records; under G.S. 15A-153 the matter is deemed not to have occurred and the petitioner may deny it. Because the clerk destroys the file (including the order), the certified copy mailed to the petitioner is the only documentation.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes North Carolina's expunction statutes and common practice and is not legal advice. North Carolina expanded relief through the Second Chance Act (eff. 12/1/2020) and amended it in 2025 (S.L. 2025-71, reducing the one-misdemeanor wait to 3 years); dismissal expunctions are often automatic. The agent must verify the current text of Ch. 15A (§§ 15A-145.5, 15A-146, 15A-145.8A), the “nonviolent” definition, the matching AOC-CR forms, SBI/AOC processes, and current fees before relying on any rule here.